

Pier and Harbour Order (Brighton) Confirmation Act, 1952

15 & 16 GEO. 6 & 1 ELIZ. 2 Ch. xxiv

ARRANGEMENT OF SECTIONS

Section

1. Confirmation of Order in schedule.
2. Short title.

SCHEDULE

BRIGHTON MARINE PALACE AND PIER

1. Short and collective titles.
2. Commencement.
3. Interpretation.
4. Undertakers.
5. Application of Harbours Docks and Piers Clauses Act 1847.
6. Increase of rates etc.
7. Revision of rates.
8. Meetings of Company.
9. Annual accounts.
10. Notices of meetings.
11. Register of shareholders and shareholders' address book.
12. Costs of Order.

Received of Mr. J. H. ...
the sum of ...

for ...

...



CHAPTER xxiv

An Act to confirm a Provisional Order made by the Minister of Transport under the General Pier and Harbour Act 1861 relating to Brighton.

[1st August 1952.]

WHEREAS a Provisional Order made by the Minister of Transport under the General Pier and Harbour Act 1861 is not of any validity or force whatever until confirmation thereof by Act of Parliament:

And whereas it is expedient that the Provisional Order made by the Minister of Transport under the said Act as set out in the schedule to this Act be confirmed by Act of Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order as set out in the schedule to this Act shall be Confirmation and the same is hereby confirmed and all the provisions thereof of Order in in manner and form as they are set out in the said schedule shall ^{schedule.} from and after the passing of this Act have full validity and force.

2. This Act may be cited as the Pier and Harbour Order Short title. (Brighton) Confirmation Act 1952.

SCHEDULE

BRIGHTON MARINE PALACE AND PIER

Provisional Order to authorise the Brighton Marine Palace and Pier Company to levy and recover increased rates and charges to provide for the revision of the rates and charges and for other purposes.

Short and
collective titles.

1.—(1) This Order may be cited as the Brighton Marine Palace and Pier Order 1952.

(2) The Brighton Marine Palace and Pier Acts and Orders 1888 to 1921 the Brighton Marine Palace and Pier Act 1936 and the Brighton Marine Palace and Pier Act 1940 may be cited together as the Brighton Marine Palace and Pier Acts and Orders 1888 to 1940.

(3) The Brighton Marine Palace and Pier Acts and Orders 1888 to 1940 and this Order may be cited together as the Brighton Marine Palace and Pier Acts and Orders 1888 to 1952.

Commencement.

2. This Order shall come into operation upon the day when the Act confirming this Order is passed and that day is in this Order referred to as the commencement of this Order.

Interpretation.

3. In this Order unless the context otherwise requires—

“authorised rates” means the rates which the Company are for the time being authorised to levy demand receive and recover under or by virtue of the Brighton Marine Palace and Pier Acts and Orders 1888 to 1952 or any order made under section 7 (Revision of rates) of this Order ;

“the Company” means the Brighton Marine Palace and Pier Company ;

“the Minister” means the Minister of Transport ;

“the pier” means the Brighton Marine Palace and Pier as constructed by the Company and the land buildings works plant property and conveniences connected therewith as for the time being existing ;

“rates” includes tolls and charges ;

“the undertaking” means the undertaking of the Company in connection with and including the pier.

Undertakers.

4. The Company shall be the undertakers for carrying this Order into execution.

Application of
Harbours Docks
and Piers
Clauses Act
1847.

5.—(1) In the application to this Order of the Harbours Docks and Piers Clauses Act 1847 the expression “special Act” shall mean this Order.

(2) Sections 12 and 13 16 to 19 25 and 26 and 84 to 87 of the Harbours Docks and Piers Clauses Act 1847 shall not be incorporated with this Order.

6. As from the commencement of this Order the Company may Increase of
increase by an amount not exceeding one hundred per centum all rates etc.
or any of the rates which by section 34 (Power to take rates and
charges according to schedule for use of pier) of the Brighton Marine
Palace and Pier Act 1888 they are authorised to demand and receive.

7.—(1) If it is represented by application in writing to the Minister—
Revision of
rates.

(a) by any chamber of commerce or shipping or any repre-
sentative body of traders or shipowners ; or

(b) by any local authority or body representative of the users
of the pier ; or

(c) by the Company ;

that under the circumstances then existing the authorised rates
should be revised in whole or in part the Minister if he thinks fit
may make an order revising all or any of the authorised rates referred
to in the application and may fix the date as from which such order
shall take effect and thenceforth such order shall remain in force
until the same expires or is revoked or modified by a further order
of the Minister made in pursuance of this subsection.

(2) An application made to the Minister under subsection (1)
of this section shall be accompanied by such information and
particulars as the Minister may consider relevant certified in such
manner as he may require.

(3) Where upon an application under subsection (1) of this
section for an increase or a decrease of the authorised rates an order
has been made or the Minister has decided not to make an order no
further application for an increase or a decrease (as the case may be)
of any of the rates to which the application related shall be made
within twelve months from the date of such order or decision as the
case may be.

(4) Before making an order under subsection (1) of this section
the Minister shall consult with such of the bodies or authorities
mentioned therein as appear to him to be appropriate including the
Company where they are not the applicants and for the purpose of
ascertaining such bodies or authorities may require public notice
of the application to be given and where an objection to an applica-
tion is made by the Company or by any such body or authority as
aforesaid and is not withdrawn the Minister unless it appears to
him that the objection is of a trivial nature shall cause an inquiry
to be held in reference to the application.

(5) Subject to the proviso to this subsection the Minister shall
not by an order under subsection (1) of this section make any such
revision of the authorised rates as in his opinion would so far as can
be estimated be likely to result in the annual revenue of the Company
being insufficient or more than sufficient to enable the Company
with efficient management of the undertaking to make adequate
provision for paying all proper expenses of and connected with the
working management and maintenance of the undertaking including
interest on loan capital (regard being had by him to any capital which
the Company may reasonably be expected to expend) making good

depreciation providing for any contributions which the Company may reasonably and properly carry to any reserve fund contingency fund or sinking fund and meeting all other costs charges and expenses if any properly chargeable to revenue together with a reasonable return upon the paid up share capital of the Company:

Provided that in any case where the Minister is satisfied that there are special circumstances affecting the undertaking taking into account the financial condition of the undertaking during such period preceding the date on which an application is made under subsection (1) of this section as the Minister considers to be appropriate the Minister may revise the authorised rates in such manner as he thinks just and reasonable with due allowance for such special circumstances notwithstanding that such revision is likely to result in the revenue of the Company being insufficient to enable the Company to make adequate provision for all of the matters referred to in the foregoing provisions of this subsection.

(6) The authorised rates as revised by an order under subsection (1) of this section shall not in any case be less than the Company were authorised to levy demand and recover under or by virtue of the Brighton Marine Palace and Pier Act 1888.

(7) The provisions of section 290 of the Local Government Act 1933 shall apply to inquiries which the Minister may cause to be held under this section as if the Company were a local authority.

(8) The power of the Minister to make an order under subsection (1) of this section shall be exercisable by statutory instrument.

Meetings of
Company.

8. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 or in any Act or Order relating to the Company the Company may by a resolution of a general meeting at any time determine that the future ordinary meetings of the Company shall be held once only in each year in such month as the Company may from time to time determine and the Company may from time to time in like manner alter or rescind any such resolution.

Annual
accounts.

9. If and so long as the ordinary meetings of the Company shall be held once only in each year section 116 of the Companies Clauses Consolidation Act 1845 shall in its relation to the Company be read and have effect as if the words "preceding year" were substituted therein for the words "preceding half-year".

Notices of
meetings.

10. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 notice of all meetings of the Company whether ordinary or extraordinary may (if the directors so determine) be given by a prepaid letter sent by post to each shareholder or stockholder instead of by public advertisement:

Provided that—

(a) any such letter shall be directed according to the registered address or other known address of each shareholder or stockholder and posted not later than seven clear days before the date of the meeting; and

(b) in proving that any such notice has been given it shall be sufficient to prove that the letter containing the notice was properly addressed and posted as a prepaid letter not later than the time prescribed by this section.

11. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 it shall not be obligatory upon the Company—

Register of shareholders and shareholders' address book.

(a) to keep separately a register of shareholders and a shareholders' address book but in lieu thereof the Company may if they think fit keep one register only containing such particulars as are required by the said Act to be entered in the register of shareholders and the shareholders' address book respectively ; or

(b) to authenticate by the affixing of their common seal or otherwise the register of shareholders or any register which the Company may keep in lieu thereof under the powers of this section.

12. All costs charges and expenses of and incidental to the preparing and obtaining of this Order and otherwise incurred in reference thereto shall be paid by the Company.

Table of Statutes referred to in this Act

Short title	Session and chapter
Companies Clauses Consolidation Act 1845 ...	8 & 9 Vict. c. 16.
Harbours Docks and Piers Clauses Act 1847 ...	10 & 11 Vict. c. 27.
General Pier and Harbour Act 1861 ...	24 & 25 Vict. c. 45.
Brighton Marine Palace and Pier Act 1888 ...	51 & 52 Vict. c. clxxii.
Local Government Act 1933 ...	23 & 24 Vict. c. 51.
Brighton Marine Palace and Pier Act 1936 ...	26 Geo. 5. & 1 Edw. 8 c. xvii.
Brighton Marine Palace and Pier Act 1940 ...	3 & 4 Geo. 6. c. xiv.

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